

COMPLETE BOOK-LENGTH NOVEL EACH ISSUE

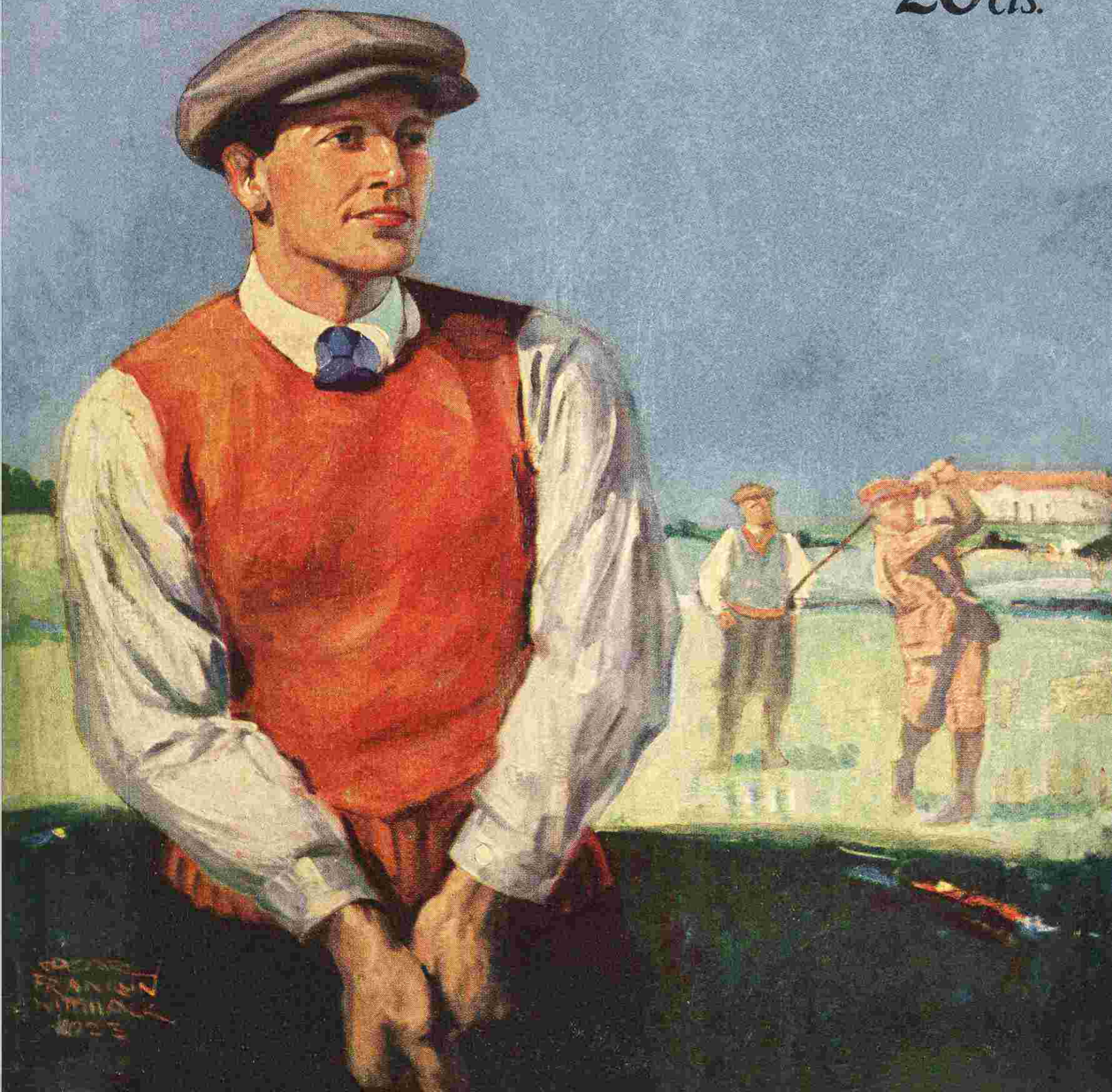
TWICE-A-MONTH

SEPT. 7, 1923

REG. U.S. PAT. OFF.

The Popular Magazine

20cts.



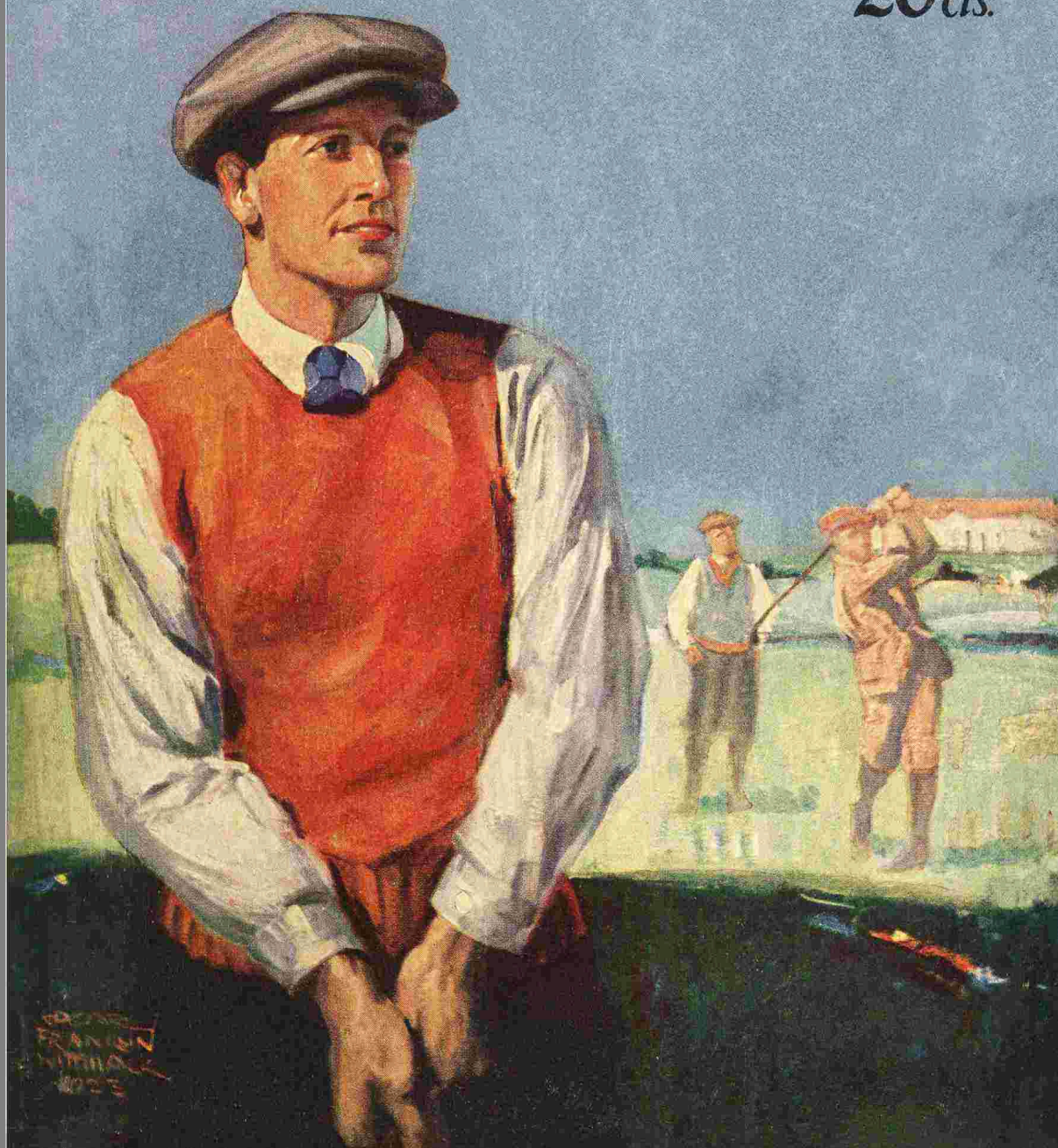
COMPLETE BOOK-LENGTH NOVEL EACH ISSUE

TWICE-A-MONTH

SEPT. 7, 1923

REG. U.S. PAT. OFF.
The Popular Magazine

20cts.



FRANK
MILLER
1923

The Project Gutenberg eBook of Where the West begins

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Where the West begins

Author: Austin Hall

Release date: November 7, 2024 [eBook #74701]

Language: English

Original publication: New York: Street & Smith Corporation, 1923

Other information and formats: www.gutenberg.org/ebooks/74701

Credits: Roger Frank and Sue Clark

*** START OF THE PROJECT GUTENBERG EBOOK WHERE THE
WEST BEGINS ***



WHERE THE WEST BEGINS

By Austin Hall

Author of "The Old Master," "The Love Call," Etc.

Billy was only a cowboy and Holman was something of a cattle king, but social distinctions didn't figure with the U. S. marshal.

Billy waited. Out in the sagebrush a black object was shunting hither and thither over the desert road, sometimes lost in the dipping swales and again hidden by the glare of the sun scintillating upon the wind shield. From the lee of the machine a ribbon of dust trailed out into the distance. Billy put on his hat and spoke to his pinto, reining him to a slight knoll to the left whence he could get a good view of the whole country. Says Billy to the pinto:

"Pinhead, we're going to have company—you an' me. That's old man Holman. He's down from his city; an' he's sore an' ornery; an' he's got about as many kicks in his system as a centipede with a toothache—all because you've been drinking his water an' because I'm a-living. An' we've got to move on, Pin, so he says—you an' me—just because he's Holman an' you an' me ain't nothin' but nothin'."

The pinto cocked up one ear at the approaching car. In his own way he scented the intrusion. Billy lit a cigarette and waited. From the knoll they looked down upon the expanse of the wide valley, north, south and east. The north was a carpet of verdure and a network of irrigation canals—reclaimed desert; the south was a stretch of sagebrush and sand, and an occasional oasis; while in the east, about three miles away, a distinct line

marked the border of desert and alfalfa—the hither side a dry parched yellow; the other side a cool living green. In the west, behind him, lay the mountains. Billy had a homestead at the foot of the mountains.

Like most homesteads it was ramshackle—a plain unpainted box house and a shed barn. There is something pathetic about all homesteads and this one was no exception; had it not been for a certain grim humor and the fact that Billy was a real cowman it would have been just like any other.

There was a streak of perversity about Billy Magee. When the idea of nesting first entered his head he had looked about for a place that would give excitement as well as a place to squat, until his Uncle Samuel should think fit to bestow upon him the dignity of a patent and the appendant distinction of being a law-abiding taxpayer. Just for that excitement Billy had planted his homestead in the strip of foothill level that separated the great free mountain range from the irrigated section of the valley. The green stretches belonged to the Holman Land and Water Company; and Holman, the president and whole works of the company had always regarded that strip as his own private property and had treated it as such, because no one had hitherto had the hardihood to file on it and make the promise to the government that they intended it for a home. The government range, in this instance, was a wild dry country. That it was still public land was due simply to the lack of accessible underground water. The creeks and springs had been taken up years before by individuals and had later been bought out by Holman. With the water in the big man's hands the rest could go hang! Then along had come Billy Magee and his homestead. If the trick were successful, Billy, as well as Holman, would have contiguous access to the great free pasture. It worried Holman; Billy was inured to the desert and accustomed to its ways; wherefore it was hardly likely that his motives were those of an air-castle tenderfoot. Knowing the country as he did and realizing the value of water the cowboy would hardly have filed on the land unless he was pretty sure of just what he was doing.

So Holman figured.

Billy waited until the car came to a stop. A heavy, broad-shouldered individual sat at the wheel, a man with gray hair and a square-cut, have-my-own-way sort of jaw.

“Magee?” he asked. He looked at the cowboy out of cold gray eyes.

“Yes, sir. That’s what my ma called me.”

“Ahem.” The big man sparred. “You received my letter last winter, I believe?”

“Sure did,” said Billy. “And I answered it. Nothin’ doin’. She’s my homestead and I’m going to keep her.”

The other nodded. “Are you sure?” He pulled out a check book. “I haven’t much time. Here’s one thousand dollars, if you relinquish—or, if you don’t wish to relinquish, we’ll call it a payment of one thousand dollars on the quarter section—against the day that you get your title.”

Billy Magee shook his head.

“Nope. She’s a pretty fair piece of land. Besides”—he waved his hand toward the range—“take a look at that.”

The other bit his lip.

“Where’s your water? You can’t use my creeks. I’ve served notice to my foremen to keep you out. So far I have been lenient, but I don’t propose to give you a bit more now than the law allows. You can’t raise stock without water. I own the creeks. You can’t drill a well because your water level is too deep, here, for successful pumping.”

Billy smiled. “She’s a fair homestead at that,” he answered. “I think I’ll keep her.”

“What’s your game.”

“No game at all,” said Billy. “Just a notion. I want to pay taxes and be a real citizen.”

“You won’t relinquish?”

“Not to-day—nor to-morrow.”

The big man thought a bit; and frowned; then to relieve his feelings he pulled a black cigar from his pocket and lighted it. Billy kept company with a cigarette.

“Let me tell you something, my boy. I’m giving you a fair chance. There’s a thousand cold, hard dollars in this paper. If you take it and give me your word I’ll help you get your title—grubstake you—and when you are done you can sign the land over to me for another thousand.”

“Suppose I don’t take the thousand?”

“That’s your funeral, not mine. A thousand’s a nice chunk of money.”

“Sure is,” said Billy, “only——”

“Only what?”

“That I don’t like that kind of money. Come on, Holman, tell me the truth. Didn’t you get all those twenty thousand acres down yonder in the irrigated belt in just this fashion? I take it that you know the law on dummy homesteading?”

No answer.

“Well, I gave Uncle Sam my oath that I was after this land for Billy Magee.”

“Then we can’t do business?”

“Not to-day.”

“Huh! Well, you’ve got the law on your side. I can’t throw you off, of course—unless I want to take a chance on the Federal prison. But”—he grinned maliciously—“better watch your homestead.”

With that he started up his machine and hit down the road through the desert fringe to the great green belt that marked the patented holdings of the Holman Land and Water Company.

Billy watched him go. Then he leaned over to his pinto. “Pinhead,” he said, “you an’ me is in fer it. I wonder what the game is? Anyway, just as soon as we hear from Uncle Samuel we’re going to have a vacation.”

An hour later he had ridden out of the desert into the irrigated section to the post office. A young lady of pleasant eyes passed out a long envelope with the legend “Department of the Interior” in the upper left-hand corner. Billy tore it open.

It was a leave of absence, à la red tape, granted to one, William Magee. Homestead entry—Serial No. 56943J, et cetera.

When he had read it he put it in his pocket.

“Well, Pinhead,” he spoke, “it’s you an’ me off to see the old boys again. We’re going back to the old outfit, where they raise real cattle. Then we’ll come back to take care of Holman.”

II

Billy Magee was coming home.

During the five months that had elapsed he had picked up enough shekels to last him through another seven months of vigil. He had bought groceries, tobacco, magazines and a ukulele; and as soon as he could get a wagon he

would hitch up and go for his provender. In the meantime he was bound for his homestead.

Billy was a musical cuss; that's why he had bought the ukulele. As he loped along on the patient Pinhead he warbled the air full of music; it was melody, sweet and rich and tuned to the joy of home: for that was his nature—and the why of the homestead—just a place that he could call his own and a place where he could hang his hat.

"If we only had a wife," he confided to Pinhead, "we'd make this little old homestead a place worth while."

He had come up through the sagebrush; at the last turn below the knoll he came into view of the side of the house; and he stopped.

"Well, I'll be dog-goned!" exclaimed Billy Magee.

Upon a clothesline, stretched from one corner of the house to a juniper post in the yard were a number of garments that had never been worn by Billy Magee; to wit—a calico dress, three pairs of silk stockings, some fluffy bits of lingerie, together with handkerchiefs and other articles.

He took a long breath. Though he was a handsome man he was anything but a gallant; he would do anything rather than face a woman. Which was perfectly natural considering the mode of life to which he had been accustomed. Bunk houses do not make for polish; and Billy was a confirmed bachelor. Girls were fairy creatures to be thought of—beings dreamy, distant, illusive—to be longed for! And here was one on his own homestead! For a moment he felt like giving up and returning whence he had come. But he had still the leaven of curiosity. He had quite forgotten Holman. Anyway, he would see what she looked like.

He left the pinto at the gate and entered the enclosure that he had fenced off the year before. It was the same and yet so different. From an open window there came a fragrance that made him hungry—not the bacon and eggs nor the ham and coffee of the confirmed desert rat; but the sweet irritating odor of apple pies. Surely, there was a woman. The stockings upon the line were of silk—somehow it seemed proper for them to be there. She would be young; and he set his mind that she would be pretty. Oh, yes, she would be that, and she could sing—from the house came the sweet flood of a love song.

Billy knocked at the door—his own door. Upon the panel was a piece of paper. He read:

Out where the world is in the making,
Where fewer hearts in despair are aching,
That's where the West begins.

Where there's more of singing and less of sighing,
Where there's more of giving, and less of buying,
Where a man makes friends without half trying,
That's where the West begins.

"By golly," said Billy, half to himself and half to the poem, "that's where she begins, all right."

Then he smiled and took off his hat; for the maker of the tantalizing pies was looking at him through the screen door. She was about as good as anything he had ever looked at. No wonder the pies smelled good! She was a demure little brunette, with cheery red lips and laughter; hair waving and done in a fashion half girlish and half womanish.

"Oh!" she said.

Billy traced his finger over the poem; he held his sombrero in the other hand.

"How do y' do?" he answered.

She nodded pleasantly; her black eyes were not critical like those of most girls; her smile was encouraging.

"I was just reading this here poem. The fellow that wrote it sure had an idee about the West."

She was frank and kindly.

"Do you like it?" She looked down at his chaps and at his high-heeled boots. It was as if he had walked out of the poem.

"Out where the West begins," she quoted.

"Who wrote it?"

"Chapman. He was a Denver newspaper man. Some one had started a dispute as to where the real West begins; so he sat down one day just before the paper went to press and typed out the answer. I think he got it just right. Won't you come in?"

Evidently she was practicing the spirit of the verse. Billy stepped into his own house. And he noted the difference; everything had been renovated and feminized by the coy hands of the girl before him. His own furniture was gone. In its place was a new outfit—a small range, shining tinware on the

walls, a table with a white spread—everything spic and span in tidy shape. After getting him a chair she opened the door to take a peep at the pies. In the interval Billy had time to think.

“You must excuse me,” she said when she had finished her inspection. “I didn’t want them to burn. They are the first pies I have cooked on our new homestead.”

Billy nodded. “You have taken up a homestead?”

“Oh, yes. Isn’t it dandy? You must excuse my diction; but I’d rather talk like this now that we are in the real West. I always did want to go homesteading, even when I was a little girl; but I never thought that I was to have the chance. You see, up to a year ago I was teaching school back in Ohio. I always loved the West—loved to read about it and wonder what it was really like. I had a pet dream of a real homestead where we could go out all by ourselves, like our forefathers—or Robinson Crusoe—and build up everything from nothing. I think it just the most fun! The very first thing I did when we came here was to nail Chapman’s verse to the door. Don’t you think that the men of the West are different?”

“Oh, I don’t know,” said Billy. “Most of them are, I guess; but I am afraid that there are some who get across the line without knowing it. How did you happen to start homesteading?”

“Oh, as to that”—she sat down and began to pat her hair, as if she could make herself look even prettier—“as to that—it was on account of my brother Arthur. He was a bookkeeper. The work in the office had undermined his health and the doctor advised him to try out of doors, to go West if he could. We had saved some money; so we decided to go homesteading.”

“What brought you to this particular section?”

“Well, I suppose it was an accident. We first came to Los Angeles to look around. Then we purchased an old car and started exploring. One day Arthur was at the land office for this district, going over the books, and ran across this quarter section.”

It puzzled Billy Magee.

“I see,” he said. “You located the land through the books and then you came here?”

“Yes. But we took the precaution to have a surveyor come with us. We stopped the first night at the Holman place. Do you know Mr. Holman?”

“I have seen him,” said Billy.

“I think he is very nice. He said he would do all he could for us. He said that he knew the location—that a mongrel horse thief had lived on it once but had been run out of the country. Just imagine—romance from the very start! A real horse thief—and I living in his house! Wouldn’t it be terrible if he should come back?” She laughed. “I always thought that they hanged the horse thieves from the bridges.”

Billy was itching under the skin but he held back his feelings. He said:

“Perhaps they would have hanged this fellow had they had a bridge. I have an idea that Holman would build one out of his own pocket if he could get a chance at him.”

“That’s what he said.”

Billy grinned.

“Supposin’ you met this black fellow—he must be black to be a horse thief, you know—would you be afraid?”

She laughed. “I don’t know. Mr. Holman gave me a pistol with which to protect myself; but I don’t think that I’d use it.”

“Why?”

“Well, because: First, I’d kind of like to know a real Western horse thief—he must be wonderful to keep living, if the West is what they say it is—and second, because I don’t believe that any girl, if she is a real girl, has need to be afraid of a mere man. Most any man can be talked into good humor if you just know how. I’d like the chance of subduing a real horse thief, bare-handed.”

Certainly she was subduing Billy. The cowboy was ready to give up his homestead; but he wanted, first, to get at the motive of Holman. Surely the big man must have known that Billy would return at the expiration of his leave of absence. Low as he held him he did not think that the cattle king would stoop so low as to deceive this girl. Perhaps—the thought startled—perhaps he had been able to so manipulate the land office that the land had been thrown open to entry. Mistakes are sometimes made. A clerical error would be very convenient to Holman.

“When did you file on this land?”

“About a month ago. Why? Is there anything wrong?”

“Oh, no. Only I am a cowboy and have lived in this country all my life. I know a great deal about homesteads. For instance, it is sometimes

convenient to have witnesses who knew you at, or about, the time of entry. Have you received your notice of allowance?"

"It came about three days ago. Do you wish to see it? Shall I get it?"

"Well, it wouldn't hurt if I took a peep at it."

In a moment she had the piece of paper. Billy took it and read it. It was the regulation notice from the department of the interior, giving the name, Jennie Ross—serial number—township—range—meridian—everything; and signed by the register and receiver of the land office.

"Isn't it all right?"

"All accordin' to Hoyle, Miss Ross. Not a thing wrong with it." He sniffed and looked at the oven; at the same instant the girl jumped up with a towel.

"My pies!" she exclaimed. "I was so interested. Supposing they had burned!"

During the interval Billy had a chance to take a piece of paper from his pocket; when she had the pies on the table he gave her back the notice of allowance.

"Well," he said, "I must be going."

She looked up at him, laughing.

"Without eating any of my pie? Shame on you. I thought you were a real cowboy!"

"Best cowboy ever was," grinned Billy. "Do you test them all with apple pies? Better not let it be known. I know about a million cow-punchers who'd be standing in line."

"I'll just bet that you could eat a whole pie," she teased.

"I'm not going to call you," returned the man. "We'll split the pot. Cut one in half and we'll go evens. There now—I'll take this one and start over in this corner."

"All right," she answered. "You start over there—where the West begins!"

There's a time that comes to every man when he meets a girl on an even footing. Billy was usually bashful; it was the first time that he had ever met a real girl without stepping on his own feet or doing something equally ridiculous and self-conscious. Before he knew it he was telling Jennie Ross his whole history—outside his homestead experience—and almost everything that he knew.

“Then you are a real Western cowboy,” she exclaimed. “All my life I have wanted to know one, one who lived on the range, who lived out in the open and thought the great free things of nature. You must meet my brother and get acquainted.”

Then she went on to tell of their dreams—of a well, and alfalfa, fruit trees, a mansion, avenues, driveways—a dream that was half homesteader and half school-teacher; and most of all out of a girlish heart. Billy listened. They stepped out on the porch; the girl pointed to the irrigated lands in the distance.

“See,” she spoke. “They tell me that all that country was once government land just like this—all desert.”

“It sure was,” answered the cowboy. “And it would be desert yet were it not for the water.”

“That’s what Arthur says. It seems to me that while they were getting water they could have drilled up here just as well as down there. When we get our well all our dreams will come true.”

Billy did some thinking. He was no tenderfoot; he knew why the irrigated belt extended just so far and no farther. He was familiar with the eccentricities of water. Down there it could be tapped at a reasonable depth and was at least semi-artesian; while up on the homestead it was almost inaccessible—the elevation was higher and the water, consequently, farther from the surface. Even after it was found there was a two-hundred-foot lift before it could be utilized; and water for irrigation purposes cannot be profitably pumped more than a hundred feet.

But he said nothing to discourage her. She was having her dream. If he could he would make it all come true. He was half sorry and half doubtful; should he tell her the truth or go after Holman? He did not care for his homestead; at the very most it had been, with him, merely a whim—a place to hang his hat, a notion.

At last he took his leave. She stepped out to the gate where he had left his pinto.

“You must come back and meet my brother some day. I am sure you will like him—and I’ll have some more pies.”

“Bet you will,” said Billy. “I am going to come back. Don’t forget the pies.”

She waved her hat at him when he was out in the sagebrush and he answered with his sombrero. When he was beyond the knoll he reined in his pony. He was thinking.

From the knoll he could look down at the section line that ran to the eastward. On the desert side it could be distinguished by the straight swath that had been cleared of sagebrush; on the other side it was marked by the fence that ran into the distance. The fence was Holman's. Billy had business with Holman. He spoke to his pinto:

"Pinhead," said Billy Magee, "we have lost our homestead. We ain't clever enough to deceive a lady. But we ain't babes yet, either. You an' me is goin' to raise tarnation with Mr. Holman."

Then he struck out across the country, straight down the section line toward the irrigated belt that was the patented domain of the Holman Land and Water Company. There was a road that ran through the desert parallel to the belt of green. When Billy came to this road he stopped. A black object was coming toward him—a man on horseback.

"'Lo, Billy Magee," greeted the man. "When'd y' get back? How's the boys up 'Pop' Mobray's way? Goin' back t' nestin'?"

"Thinkin' of it," said Billy. "Mebbe. Don't know what I'll do. Y' goin' by the mines?"

"Yep. Expect to be at the mine to-night. Why?"

"Nothin'. Only I want to write a note. Can y' wait? I want y' to give it to the stage driver. It's to my old boss, Mobray. It's kinda special; seeing as how it has to deal with a funeral."

"A funeral?"

"Yep. Leastways, almost so. There may be two. I kinda want to get news to Pop so's he can be on hand, when they take a certain cow-puncher, that we know of, off to the calaboose."

"What's the rumpus?"

"No rumpus 'tall. It's just that there's some in this country that's busting with this here stuff what we call chivalry! We ain't goin' to mention no names, nor have no hard feelin's. Y' ain't seen Holman lately?"

The other squinted one eye and whistled.

"Y' ain't goin' t' tangle with Holman, Billy?"

The cowboy nodded.

“Yep. But y’ needn’t say nothin’ to nobody. If you see a column of smoke and sparks comin’ up from that strip of green yonder, you can know that it’s from Holman and Billy Magee. Him an’ me is goin’ t’ have a little round-up.”

“Better be careful, Billy. Don’t lose your head. You can’t hurt Holman. That crowd of Mexicans that he keeps will shoot you down like a rat. What’s the fuss? If it’s so dog-gone glorious let me in on it.”

Billy grinned. “I’d like to be accommodating but this is kinda special. I want it all for myself. I’ll take care of the Mexicans. Will you mail this note?”

“Make it a book. It’s your funeral.”

“That’s what Holman said,” returned Billy Magee. “And it’s the truth. They’s goin’ to be something happen.”

It took him a long time to write that letter. When he was through he took an envelope from his pocket. “Just happened to have the makin’s of a note. Here she is. Can you catch that stage?”

“What’s the game?”

But the cowboy had dug his spurs into the pony and was off down the straight section line that led through the domain of the Holman Land and Water Company.

Billy Magee had a reason. He was mad clear through and the more he thought the madder he got. At last he came to the line fence that marked the border between the desert and the alfalfa. A broad gate barred his way. On the top board were the words:

NO TRESPASSING.

Billy read the sign; it was a bit different from the one that the girl had pinned on the door. He swung the gate, cowboy fashion without alighting from his pinto; in another minute he was upon invaded territory. It did not bother Billy Magee. He rode straight on for a mile and a half—then he stopped.

He was in the center of a great alfalfa field; to the left of him was a small building and an immense stack of alfalfa; from one side of the building a steady stream of water was flowing into a ditch that bore it out to the fields. Some men—Mexicans—were at the stack. Several teams with full loads were waiting their turn. One wagon was being unloaded. Just as he rode up

a last fork of hay was mowed up toward the stack. Billy estimated the pile as close to two hundred tons. A man, evidently a boss, was coming toward him. Billy reached for his gun.

“Hey!” said the man.

“Hey, yourself,” said Billy Magee.

The man stopped before the gun. He was a tall fellow, heavy, and though he was of a dark complexion he was not Spanish—rather was he Irish. And he was no coward.

“What’s the idea?” indicating the gun. “Will it go off? What’cha want?”

The cowboy rode up.

“Just this, Sweeny. I want you to git. Git! Savvy the English? See that ditch over yonder? Take your bunch of Mexicans on the other side. And keep them there. It’s healthy.”

“Humph!” sneered the other. “Supposin’ I refuse?”

But the man said no more; he looked into the eyes of Billy Magee and backed away.

“What’s the idea, Billy; have you gone mad?”

“Kinda,” said the cowboy. “And I’m goin’ t’ get madder. This is dog days and I’ve been bitten—by a dog. Here! I’ll help you get that bunch moving.”

The gun barked. A fork of hay was rising up from a fresh load. The bullet cut the spring rope. The mass of alfalfa dropped back to the wagon. A splatter of Spanish followed. Billy Magee rode up to the stack.

“Come. Vamoose! Take ’em out of here, Sweeny!”

For a minute there was silence—then consternation. The men stumbled out of the stack and began unhooking the butt chains. They all knew Billy Magee. He was the best-natured man in the country. Everybody knew him. Billy had gone crazy. Only one man stopped to remonstrate.

“Wait,” he said. “You, Billy. You go the loco.” He pointed to his head. “Mebbe better for to have drink. Mebbe so”—he looked up at the sun and wiped his head—“*caliente!*”

“You bet I’m hot,” snapped the cowboy; “but it’s not the sun. You get down and help with those butt chains. Here you——”

The gun barked again. The frightened Mexican rolled headfirst off the load to the shelter behind the horses. The whole outfit marched ahead; behind came the foreman, and back of him Billy. The alfalfa was waist-high.

“Fine lot of grass,” commented the cowboy.

The other had recovered his courage; knowing Billy he had not crossed him. There is wisdom in discretion—also safety.

“What’s the idea? What’cha pullin’ off? Y’ can’t get by with this kinda stuff—not nowadays. Wait till Holman hears; he’ll come howling.”

“We ain’t arguin’,” said Billy. “I told you I am mad. Ain’t nothin’ in hell any madder. You go get Holman. When he comes I’m going to eat him—raw.”

The foreman scratched his head.

“All right, Billy. I’ll send the old boss after you, but I ain’t guarantee who’s goin’ to do the eating. I’ll keep my hands off. Look out for the Mexicans.”

Billy Magee did not answer. When the Mexicans had disappeared across the alfalfa he turned back toward the pump house. For some moments he stood by the flow of water—fully a thousand gallons a minute. He did some thinking—varied and yet centered—deserts, water, homesteaders, girls, dreams, trees, homes—love. A vague feeling had entered the breast of Billy Magee. He had a notion that life might be worth the living. He stepped into the shed; the hum of the motor runed in his ears and called up a tune that was lying at the bottom of his heart. From his pocket he drew the notebook, tore out a leaf and wrote upon it. Then he tacked it on the wall. When he was through he looked up: the pinto was beside the door.

“Well, Pinhead,” said Billy Magee, “she’s done. If you an’ me can hold out an’ keep our skins from being perforated they’s goin’ to be some truth in poetry.”

The Mexicans and Sweeny did not come back. When a man of Magee’s social standing flourishes a gun lingering ceases to be a healthy pastime. He could see their dim forms, mere dots, disappearing toward the ranch house. The sun was going down, so he led his pony to the stack, picked out a cove between two piles of alfalfa and stabled him securely by pitching a mass of hay about the opening. Then he climbed the stack and waited for the moon.

For Billy was not quite as mad as he seemed; he had a plan and a deliberate way of going at it. He knew that Holman would not tolerate his presence on the ranch but he knew also that before the big man came he would have to deal with the Mexicans. Holman had already offered him one thousand dollars; therefore it was almost a certainty that he would pay an

equal sum to the Mexicans if they would relieve him of the trouble of dealing with Billy Magee. The cowboy had driven the owner's hands off with a gun; and the law of the land protects the rights of property—only, Billy knew too much about the law! Instead of fearing the Mexicans he hoped that they would come. It would be a pleasant preliminary to his meeting with Holman. In fact it would do away with the necessity of a fight with the big man and help him immensely in his revenge.

Nevertheless he had a chance to sleep. It was not until the wee hours that his estimation of Mexican valor came to its proof. Just before daylight he was awakened by the pinto's nickering and the simultaneous report of a gun. In an instant he had ducked into the hay and was worming toward the edge.

“Ah, ha!” said Billy Magee. “Now we have the fun!”

With his revolver in his hand he crawled to a point of lookout but at first he could see nothing. There was no more shooting. Below him stretched the sea of alfalfa; as the sun tipped the mountains to the eastward he scanned every bit of it and at last he found what he was after—a head lifted, a hand. Billy did not wish to kill—that hand was a good mark.

The next instant the new daylight was cut by Spanish expletives. The Mexican leaped to his feet with a yell and without parley fled out of range. Billy watched for the others.

He did not have to wait long. A Mexican does not fight at a disadvantage. He watched with considerable glee the wriggling, frightened forms working their way out of gunshot. When they were out of danger they stood up on their feet and disappeared toward the ranch house.

Billy straightened and took a good look. If his simple plan was working it ought to be coming to fruition. Sure enough he made out a dot approaching in the distance, a fast-moving dot that could be nothing other than a machine. The car came straight to the gate that Billy had entered the previous afternoon and drew up at the pump house. Billy climbed down from the stack. A man stepped from the automobile.

“Mr. Magee.”

“That's me,” said Billy.

“My name is Arthur Ross. Mr. Mobray met me in town last night; he said to tell you that Jones gave him your letter. He just happened to meet him.

He insisted that I come here without delay. He will come just as soon as he follows your instructions.”

“Did he tell you what I wanted you for?”

“No.”

The young man was dressed in corduroys and a slouch hat; he had a family resemblance to the girl Billy had found on his homestead.

“Come into the pump house.”

The stranger read the words that Billy had tacked on the wall. His jaw dropped suddenly.

“Where did you get this. Did Mr. Holman——”

“Exactly.”

“I do not understand.”

“You will when that machine gets here.” Billy pointed to a car crossing the alfalfa. “They’s some people who carry this here stuff they call chivalry in their pocketbook. Holman’s a sweet, kind gentleman. Just now he’s coming to throw me off the ranch.”

The other did not answer. He was watching the machine coming from the ranch house. It drew up at the shed. Holman was at the wheel and there was evidently something on his mind; at the sight of Arthur Ross he flushed slightly.

“Ah, Mr. Ross.” Apparently he did not know what to say. “It is a fine morning. Is there—er—something that you want?”

“Decidedly,” answered the young man, “but perhaps you had better talk to my friend here. He’s my agent.”

Holman did not conceal his anger now. He turned to Billy Magee.

“What do you want here! Do you know the rules of the Holman Land and Water Company? Git out!”

Billy was modest to a tantalizing degree. He took off his hat and smiled, half in triumph and half in amusement.

“Before I go, Mr. Holman, I would like to thank you for the killers that you sent after me a while ago. Also I would like to stay until that automobile gets here.” There was another machine coming through the gate. “I want to hear what the United States marshal has to say about it.”

“The United States marshal!”

“Exactly. If you will get out of the machine I have something to show you.”

The big man did not like it but he did not demur. The three men entered the pump house.

“Can you read, Mr. Holman?”

“Humph!”

“Yes, that’s it. That piece of paper is the homestead entry of Jennie Ross—section twenty, southeast quarter, range twenty-six, Mount Diablo meridian, which happens to be this identical and specified piece of alfalfa. This is government land, Mr. Holman, even if you did happen to have it covered up. It was open for entry and belonged to any one who would properly file on it and live up to the conditions specified by the government. Arthur Ross discovered it on the books at the land office and Jennie Ross filed on it. Not only that; but they secured a surveyor to direct them to the land. By a mere accident they happened to stop at your ranch house. And because you did not wish to lose the land, even if you had to steal it, you bribed the surveyor to locate them on my hopeless piece of desolation out there in the desert. You knew that if you could keep them from establishing residence for six months you could have a dummy file a contest and cheat them out of their rights. You have even gone as far as violence. I don’t know what your lawyer will call it; but I do know that our good old Uncle Sam looks upon every homesteader as his own private ward and goes after those who interfere with them almighty hard. How about it, Mr. Marshal?”

The marshal was looking through the door. Pop Mobray was by his side. Billy grinned.

“Nice little round-up we’re havin’. Eh, Holman?”

A few minutes later the president of the Holman Land and Water Company was on his way to deposit bail, unroll red tape and fatten his lawyers in the slow, unceasing roll of government justice.

When they were gone Billy turned to Arthur Ross.

“Go up and tell Jennie to come down and start her dream on a real piece of land. Tell her I want her to pardon me for switching papers on her while she was looking at her pies. And thank her for that piece of pie.”

And when Arthur Ross was gone he took a stub pencil from his pocket and wrote upon the side of the pump house:

Where there’s more of singing and less of sighing,
Where there’s more of giving, and less of buying,
Where a man makes friends without half trying,

That's where the West begins.

"Gosh," he said, "a girl who sticks up a piece like that sure needs a square deal. It's real poetry. I'd like to meet the man who wrote it."

THE END

Transcriber's Note: This story appeared in the October 20, 1928 issue of *Argosy All-Story Weekly* magazine.

*** END OF THE PROJECT GUTENBERG EBOOK WHERE THE
WEST BEGINS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.